

Sompal @ Somi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 June 2015 · Criminal Misc. Writ Petition No. 14201 of 2015 · **FIR under s.135 not quashed; arrest to follow CrPC 41/41-A; compounding left to Supply Code.**

HEADNOTE

A Division Bench refused to quash an FIR under Section 135 of the Electricity Act, 2003, because the FIR disclosed a cognizable offence. Arrest had not been made. Directing that if arrest were effected for an offence not entailing more than seven years' imprisonment, the police must comply with Sections 41(1)(b) and 41-A CrPC, the Court added that if the offence is compoundable the petitioner may seek compounding under the Electricity Supply Code, 2005. The writ was disposed of.

FACTUAL SUMMARY

Sompal alias Somi petitioned the Allahabad High Court to quash an FIR dated 25 April 2015, registered as Case Crime No. 155 of 2015 under Section 135 of the Electricity Act, 2003 at Police Station Shahpur, District Muzaffarnagar. He had not been arrested and feared that the police would take him into custody contrary to Sections 41(1)(b) and 41-A of the Code of Criminal Procedure. His counsel also submitted that the alleged offence was compoundable and could not attract a sentence of more than seven years.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards, compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence cannot be quashed in writ jurisdiction. Where arrest has not been made and the offence will not entail a sentence of more than seven years, the police must, if arrest is to be effectuated, comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE ON THE FACTS

The Court did not decide compoundability; it left the petitioner to seek the Supply Code remedy if the offence is compoundable. ¶ 1